

An Act

ENROLLED SENATE
BILL NO. 1344

By: Rosino, Mann, and Hicks of
the Senate

and

Stinson, Waldron, Menz, and
Archer of the House

An Act relating to prescription drugs; creating the Insulin Access and Affordability Program for specified purposes; directing the State Department of Health to provide certain financial support; requiring certain agreement with nonprofit pharmaceutical manufacturer; describing agreement; requiring certain annual reporting; providing for codification; providing an effective date; and declaring an emergency.

SUBJECT: Patient access to affordable insulin

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-271 of Title 63, unless there is created a duplication in numbering, reads as follows:

A. There is hereby created the Insulin Access and Affordability Program, which shall be administered by the State Department of Health for the purpose of increasing patient access to affordable insulin in this state, reducing prescription drug costs for consumers and payors, bolstering American manufacturing of pharmaceuticals, increasing marketplace competition, and addressing shortages in the market for generic insulin.

B. The Department shall, with funds appropriated by the Legislature, provide financial support to one or more pharmaceutical manufacturers that manufacture, or are currently developing, a fast-

acting biosimilar insulin. Each such pharmaceutical manufacturer shall manufacture the fast-acting biosimilar insulin in the United States.

C. Prior to disbursement of any funds, the Department shall enter into a memorandum of understanding (MOU) with the pharmaceutical manufacturer or manufacturers, and each manufacturer shall demonstrate a match of non-state funds equal to the amount received by the manufacturer under the Insulin Access and Affordability Program. The MOU shall include, but not be limited to:

1. A commitment by the manufacturer to produce a fast-acting biosimilar insulin at a low net cost without rebates, except as required by law, within a time frame agreed upon between the Department and the manufacturer;

2. A commitment by the manufacturer to manufacture fast-acting biosimilar insulin in the United States;

3. Estimated savings from the purchase of low-cost, fast-acting biosimilar insulin including, but not limited to, the estimated savings to residents of this state and public and private payors from the availability of low-cost, fast-acting biosimilar insulin; and

4. Provisions for the repayment of the funds provided under the Insulin Access and Affordability Program if the manufacturer fails to produce and distribute a low-cost, fast-acting biosimilar insulin or otherwise fails to substantially comply with the requirements of this section or the MOU.

D. The pharmaceutical manufacturer or manufacturers shall submit reports annually to the Department on the development, production, and distribution, as applicable, of the fast-acting biosimilar insulin in a manner prescribed by the Department. The Department shall compile the reports into a single report and shall annually submit such report electronically to the Governor, the President Pro Tempore of the Senate, and the Speaker of the House of Representatives.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 24th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 29th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____